

Tentative Rulings
July 10, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *Sheen, Jr., et al, v. Sheen, et al.*, Case No. CIVSB2433310
Defendant's Demurrer and Motion to Strike
7/10/26, 9:00 a.m., S-17

The Court is inclined to **SUSTAIN** the unopposed demurrer with twenty days leave to amend. This ruling would make the motion to strike moot.

A failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].) Here, it appears Plaintiff has conceded the validity of the arguments.

Alternatively, the Court is cognizant of a prior stipulation to continue trial dates due to party unavailability and will hear argument on whether a good faith error occurred as to the timing of this instant demurrer and motion and whether a continuance is warranted.

15. *Decoud v. Budget Rent A Car System, Inc., et al*, Case No. CIVSB2328817
Defendant's Motion to Dismiss or, in the Alternative, for Further Sanctions
7/10/26, 9:00 a.m., S-17

The Court would **GRANT** this unopposed motion but as to the alternative relief of further sanctions. Plaintiff will complete responses to requests for production, set one (RFP1), as previously ordered. Plaintiff will also pay an additional \$625 in sanctions within thirty days.

On November 6, 2025, the Court previously **GRANTED** Defendant's motion to compel responses to RFP1, served on June 21, 2024, as well as the requested sanctions of \$625. Both responses and sanctions were due within thirty days; thus, both were due by December of 2026. While Plaintiff apparently sent some correspondence with a limited informal production, she did *not* submit verified responses nor did she pay the due sanctions. The Court will also set a compliance hearing 45 days out to determine whether yet further sanctions might be warranted.
